COMPLAINT NUMBER: 2026-0320271 WARRANT NUMBER: GS1113119

PROSECUTOR: Adrian E Silva

DEFENDANT: Roberto Israel Martinez Alvarez

VICTIM: Ascenscion St. Thomas Midtown

STATE OF TENNESSEE, COUNTY OF DAVIDSON

AFFIDAVIT

Vandalism- $1,000 or less

39-14-408

Personally appeared before me, the undersigned, **[Select one]** _x_ Commissioner ___ Metropolitan General Sessions Judge, the prosecutor named above and made oath in due form of law that **[Select one]** _x_ he ___ she **[Select one]** ___ personally observed _x_ has probable cause to believe that the defendant named above on 05/24/2026 in Davidson County, ***did unlawfully*** Cause damage to or the destruction of any real or personal property of another or of the state, the United States, any county, city, or town knowing that the person does not have the owner's effective consent

and that ***the probable cause is as follows***:

On 5/24/2026, while working as a uniformed police officer for MNPD, I was dispatched to St. Thomas Midtown hospital located at 2000 Church St in Davidson County for a report of a disorderly person who punched a hole in a wall inside the Emergency Room. Upon arrival, I spoke to multiple witnesses who stated that the defendant yelled at staff, and punched a hole in the wall inside of the Emergency Room. The witnesses showed me the wall, that had damage consistent with being punched. The witnesses showed me security camera video that recorded the incident, and I observed the defendant yelling at medical staff and hospital security, and punch a hole in the wall, effectively causing damage of hospital property without consent of the hospital. The witnesses stated that after the defendant punched a hole in the wall, hospital security placed him in handcuffs to prevent further incident.

I spoke to the defendant, who denied punching a hole in the wall. While speaking to the defendant, the defendant mocked hospital staff as well as myself and other officers with profanity. The defendant spoke with slurred speech, and was unsteady on his feet, and I could detect an odor of alcohol coming from the defendant.

Due to the likelihood of the offense to continue, the defendant did not qualify for a state citation, and the defendant was taken into custody and transported to Davidson County Detention Center without incident.

Mr. Brian Dumal, who is a security supervisor for the hospital, stated he would like to prosecute on behalf of the hospital for the vandalism.

ESignature

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Prosecutor: Adrian E Silva 100007273

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A R R E S T W A R R A N T

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Information on oath having been made, that on the day and year aforesaid, and in the County aforesaid, the offense

of Vandalism- $1,000 or less A MISD, as aforesaid, has been committed and charging the defendant thereof, you are therefore commanded, in the name of the State, forthwith to arrest and bring the defendant before a judge of the Court of General Sessions of Davidson County, Tennessee, to answer the above charge.

Sworn to and subscribed before me on 05/24/2026 19:26:44 .

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Carolyn Piphus

Judge of the Metropolitan General Sessions Court/Commissioner

If the defendant's charge is dismissed, a no true bill is returned by a grand jury, the defendant is arrested and released without being charged with an offense, or the court enters a nolle prosequi in the defendant's case, the defendant is entitled, upon petition by the defendant to the court having jurisdiction over the action, to the removal and destruction of all public records relating to the case without cost to the defendant.

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